

STATE OF NEW YORK

8494--B

2025-2026 Regular Sessions

IN SENATE

September 3, 2025

Introduced by Sens. LIU, FAHY, OBERACKER, SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Labor in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to permitted leaves of absence for members of civil air patrol

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 1, 2 and 4 of section 202-l of the labor law,
2 as added by chapter 393 of the laws of 2014, paragraph (a) of subdivi-
3 sion 2 as amended by chapter 376 of the laws of 2014, are amended to
4 read as follows:

5 1. During the time that an emergency exists following a declaration of
6 such emergency pursuant to section twenty-four or twenty-eight of the
7 executive law, or during a United States Air Force or United States
8 Coast Guard assigned mission, an employee may request and shall be
9 granted a leave of absence from [~~his or her~~] their employer while
10 engaged in the actual performance of [~~his or her~~] the employee's duties
11 as, (a) a volunteer firefighter, [~~or~~] (b) an enrolled member of a volun-
12 teer ambulance service pursuant to article thirty of the public health
13 law, or (c) a member of the United States Air Force Auxiliary Civil Air
14 Patrol or the United States Coast Guard Auxiliary Pilots unless the
15 employer determines that the employee's absence would impose an undue
16 hardship on the conduct of the employer's business as defined by para-
17 graph (d) of subdivision ten of section two hundred ninety-six of the
18 executive law.

19 2. Subdivision one of this section shall apply only when:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 (a) The employer has previously received written documentation from
2 the head of the employee's volunteer fire department or volunteer ambu-
3 lance service or unit commander, as applicable, notifying the employer
4 of the employee's status as a volunteer firefighter or member of a
5 volunteer ambulance service or member of the United States Air Force
6 Auxiliary Civil Air Patrol or the United States Coast Guard Auxiliary
7 Pilots; and

8 (b) The employee's duties as a volunteer firefighter [~~or~~], member of a
9 volunteer ambulance service, or member of the United States Air Force
10 Auxiliary Civil Air Patrol or the United States Coast Guard Auxiliary
11 Pilots are related to the declared emergency; and

12 (c) In the case of members of the United States Air Force Auxiliary
13 Civil Air Patrol or the United States Coast Guard Auxiliary Pilots, upon
14 written request from a unit commander to participate in emergency
15 services or during a United States Air Force assigned mission.

16 4. Upon the employer's request, an employee who has been granted a
17 leave of absence in accordance with this section shall provide [~~his or~~
18 ~~her~~] their employer with a notarized statement from the head of the
19 volunteer fire department or volunteer ambulance service, or unit
20 commander, as applicable, certifying the period of time, or times, that
21 said employee responded to any emergency pursuant to this section.

22 § 2. This act shall take effect immediately.